IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU

I.A.No.208/18 in CP(CAA)03/BB/2018
Rule 11 of the NCLT Rules, 2016

In the matter of:

Hothur Motors Private Limited,
811/2, NH 63, Hospet Road,
Alipur Bellary, Karnataka 583 105. ...Petitioner Company/Transferor Company

Date of Order: 03rd October, 2018

CORAM: Hon'ble Shri Rajeswara Rao Vittanala, Member (J)
Hon'ble Dr.Ashok Kumar Mishra, Member (T)

Counsel/Parties Present:

For the Applicant : Shri Arjun Perikal with Shri Andre Peter

O R D E R

PER; Rajeswara Rao Vittanala, M(J)

1. I.A.No.208/18 in CP(CAA)No.03/BB/2018 is filed by Hothur Motors Private Limited by inter alia seeking to permit the applicant to change the appointed date on the Scheme Amalgamation with Minera Steel & Power Private Limited from 01.04.2016 to 01.04.2018 or such other date this Tribunal may direct.

2. Heard Shri Arjun Perikal , learned counsel for the Applicant/Petitioner. The learned counsel for the Applicant/Petitioner submit that the Board of Directors of the Petitioner Company, vide Board Resolution dated March 3, 2017 approved the appointed date as

01.04.2016 for Scheme of Amalgamation of Hothur Mortors Private Limited with Minera Steel & Power Private Limited. However, due to unforeseen circumstances, the timeline for completion of the amalgamation has been longer than what was initially anticipated. Further, the companies to the Scheme are on the verge of closing their accounts for the year ended March 31st March, 2018 to comply with other statutory requirements. In view of this, the Board of Directors of the company vide resolution dated 21.06.2018 had approved the modification of the Appointed Date in the Scheme to April 1, 2018 instead of 01.04.2016.

3. We have considered the pleadings and perused the materials available on record. We are convinced that the I.A.No.208/18 is deserve to be allowed.

4. I.A.No.208/18 in CP(CAA)No.03/BB/2018 is allowed permitting the Petitioner counsel to amend the Appointed Date as 01.04.2018 instead of 01.04.2016 in the Company Petition, by granting liberty to the Petitioner to carry out necessary amendment in the CP. Post the case for "Final Hearing" on 22.10.2018.

(Dr.Ashok Kumar Mishra)
Member (T)

(Rajeswara Rao Vittanala)
Member (J)

Prema Murray - Steno